

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	)))	Docket No. RM26-4-000
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COMMENTS OF ADVANCED ENERGY UNITED

Advanced Energy United appreciates the opportunity to provide input to the Federal Energy Regulatory Commission (“FERC” or “Commission”) in response to the letter from the Secretary of the Department of Energy (“DOE”) pursuant to Section 403 of the DOE Organization Act (“DOE Act”) directing FERC to initiate rulemaking procedures regarding the interconnection of large loads (“Large Loads Letter”).¹ The Large Loads Letter contains an Advanced Notice of Proposed Rulemaking (“ANOPR”), including fourteen principles for addressing issues relating to the interconnection of large loads directly to transmission facilities, and requests that the Commission take final action no later than April 30, 2026.² Advanced Energy United is supportive of efforts by DOE and the Commission to expediently resolve uncertainties and advance efficiencies with respect to the rules governing large load additions. Our comments below offer recommendations to successfully achieve the objective of the Large Loads Letter to ensure that “large loads, including AI data centers, served by public utilities must

¹Letter from Chris Wright, Sec’y of Energy, U.S. Dep’t of Energy, to the Fed. Energy Regul. Comm’n (Oct. 23, 2025) (“Large Loads Letter” or “ANOPR”).

² Large Loads Letter, at 2.

be able to connect to the transmission system in a timely, orderly, and non-discriminatory manner.”³

I. INTRODUCTION

Load growth is a signal of economic strength, but the pace and scale at which it is currently projected to materialize is posing a series of well-documented challenges, ranging from potential resource adequacy shortfalls to concerns that the cost of serving new large loads may spill over to other customers. Navigating through the current era of load growth in a way that supports economic growth while also maintaining energy affordability and reliability is the top challenge facing the entirety of the electricity industry—from private companies to public utilities to non-profit grid operators to experts and advocates to regulators and elected officials. DOE’s initiative and leadership in proposing creative and bold solutions and FERC’s quick response to initiate a rulemaking proceeding and accept stakeholder comments indicate an understanding of the urgency and importance of the task at hand, and signal an encouraging commitment to meaningful reform.

The solutions to the challenges that rapid load growth poses are at once simple and complex. At the core, accommodating load growth is a question of investing in infrastructure: generation and storage resources, transmission and distribution upgrades, advanced grid management, and customer-sited technologies for resilience and flexibility. Delivering these solutions involves integrated system planning and clear and fair market rules to ensure an efficient and reliable resource mix. The Commission has already taken important actions through rulemakings like Order Nos. 2222, 2023, and 1920 and 1920-A that will, when fully

³ Large Loads Letter at 1.

implemented, better equip grid operators, transmission providers, and market participants to prepare for load growth and any other future challenges. But there is a lag between issuance of reforms and full implementation, and additional delay before the resulting physical infrastructure reaches commercial operation and is able to generate, store, avoid, shift, and/or transmit electrons to serve new load.

While the medium- to long-term solutions to meeting load growth are already underway, new large loads can often materialize much more quickly than the infrastructure to serve them. If we try to force too much new load onto an unprepared grid, the result will be reliability shortfalls and price spikes that adversely impact all customers. And if we build new infrastructure to meet forecasts that turn out to have been inflated, reliability concerns may be minimized, but the cost impacts to all customers will be exacerbated. At the same time, new large loads are presenting novel challenges due to their scale and operating characteristics. The question at the heart of this proceeding is how to enable speed to power for new large loads in a way that is transparent, durable, fair for all customers, and consistent with the requirements of the Federal Power Act (“FPA”) to avoid undue discrimination and ensure just and reasonable rates.

The ANOPR rightly emphasizes the long-standing principle of open access transmission service, citing improvements to transmission planning and generator interconnection that have stemmed from and served to bolster this foundational principle.⁴ The load interconnection process today is characterized by long delays and lack of transparency⁵—not the hallmarks of a

⁴ See ANOPR at 3, 6, 7, 9, 12, 13.

⁵ See Google comments to PJM Interconnection, L.L.C., RE: Critical Issue Fast Path – Large Load Additions, available at <https://www.pjm.com/-/media/DotCom/committees-groups/cifp-lla/postings/20250828-stakeholder-comments-cifp-lla.pdf>, at 5 (“Existing large load interconnection processes, especially in areas with a significant volume of requests, have become overwhelmed and insufficient, and interconnecting customers are facing interconnection times of several years, at best, and unknown times at worst, with little insight into the constraints driving those timelines or how interconnection requests are differentiated among customers.”)

system in which open and non-discriminatory access to the transmission system is assured. Many states and regions are already stepping in to rectify a clearly broken process, ranging from PJM's Large Load Additions Critical Issue Fast Path (CIFFP) process⁶ to SPP's efforts to accommodate large loads through various High Impact Large Load pathways⁷ to a growing number of state-jurisdictional large load tariffs.⁸ The interrelated task of improving load forecasting has also rightly received increased attention, as the (in)accuracy of our load forecasts will determine whether our responses to impending load growth are appropriately tailored to the scale and scope of the challenge.⁹

The Commission can and must play a role in providing clarity to the large load interconnection process and to the various rules and processes that impact and are impacted by large load additions. Given its national purview and broad authority, the Commission is uniquely positioned to gather information from across these efforts and from all involved stakeholders to identify the areas where Commission involvement is necessary to ensure open access to the transmission system, where it will prove beneficial in accelerating and clarifying progress, and where it may conversely impede or complicate efficient implementation of solutions. As the

⁶ Letter from David E. Mills, PJM Board of Managers Chair, PJM, Interconnection, L.L.C. to PJM Stakeholders (Aug. 8, 2025). <https://www.pjm.com/-/media/DotCom/about-pjm/who-we-are/public-disclosures/2025/20250808-pjm-board-letter-re-implementation-of-critical-issue-fast-path-process-for-large-load-additions.pdf>

⁷ Southwest Power Pool, Inc., Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load Generation Assessment, Submitted in Docket No. ER26-247, (October 24, 2025) ("HILL/HILLGA Filing").

⁸ See Revisions to large load tariffs approved by state regulators in the Appalachian Power Company's ("APCo") West Virginia service territory, and in American Electric Power's ("AEP") Ohio service territory. Virginia Electric and Power Company ("Dominion") and APCo Virginia have large load tariff provisions pending before the Virginia State Corporation Commission; final outcomes are expected by the end of 2025. Additionally, Commonwealth Edison ("ComEd") has proposed large load tariff revisions.

⁹ Advanced Energy United, Pre-Technical Conference Comments, Docket No. AD25-7-000, at 2 (May 16, 2025); Letter from Chairman Rosner, Federal Energy Regul. Comm'n, to Reg'l Transmission Operators and Indep. Sys. Operators (Sept. 18, 2025); Letter from Electricity Customer Alliance, to Federal Energy Regulatory Commission (May 30, 2025).

Commission approaches the complex and exciting challenges laid out in the Large Loads Letter and accompanying ANOPR, Advanced Energy United urges an approach that is:

- **Affordable.** Consistent with the requirement of the FPA to ensure just and reasonable rates, any rules regarding large load interconnections must promote affordability for all customers.
- **Reliable.** Ensuring safe and reliable electricity is at the core of the Commission's mission, and rules governing large load additions should ensure that reliability is not compromised by the influx of new large loads. The Commission should work closely with the North American Electric Reliability Corporation (NERC) to achieve this objective.
- **Fair.** Consistent with the FPA, the Commission must protect against undue discrimination and ensure just and reasonable rates by avoiding adverse impacts on other market participants and other (non-large load) customers. This means avoiding any adverse impacts to reliability and resource adequacy, avoiding undue preference to large loads and/or the resources serving them, not interfering with clear and fair market signals and rules for all market participants, and ensuring that cost causers bear appropriate costs by protecting against direct or indirect cost shifts.
- **Efficient.** Any actions taken by the Commission should support the goal of speed to power, and should avoid disrupting progress as reforms are debated and implemented. In some areas, Commission intervention may provide necessary standardization and transparency that promotes efficiency, while in other areas it may add risk of delay or complexity. The record in this proceeding will be instructive in identifying reforms to prioritize and those to avoid or approach with more caution.
- **Durable.** While this proceeding is a response to the acute challenge of rapid data center load growth, the solutions it produces should avoid disrupting long-term market and business certainty, good long-term planning practices, and fair and open access to the transmission system, consistent with all applicable statutes and legal precedent. To the extent temporary measures are considered, they should be designed such that they support, rather than conflict with, long-term solutions.

Advanced Energy United's comments below are offered with these overarching goals in mind, and we look forward to continuing to work with the Commission, DOE, the RTOs/ISOs, states, and other stakeholders to enact solutions that enable speed to power without eroding critical guardrails that have and will continue to serve all customers well.

II. COMMENTS

A. Jurisdiction

United agrees with DOE that FERC has an important role to play in providing clarity and addressing the challenges of large load additions. As DOE explains in the ANOPR, section 201(b) of the Federal Power Act (FPA) grants the Commission jurisdiction over the sale of wholesale electricity in interstate commerce and over the transmission of electricity in interstate commerce.¹⁰ This commonly accepted basis for the Commission's jurisdiction clearly grants the Commission an important role in the interconnection of new large loads to the transmission system. At minimum, this makes the Commission responsible for clarifying treatment of different large load and co-location arrangements with respect to their impact on and use of wholesale services and the interstate transmission system; ensuring that load forecasts used in FERC-jurisdictional planning processes and impacting FERC-jurisdictional markets are accurate; ensuring open access to the transmission system; maintaining just and reasonable rates; and ensuring reliability as large loads come online.

It is important that FERC make clear that regardless of the role FERC plays in large load interconnection arrangements, states retain jurisdiction over retail sales to large loads. As noted in United's response to the PJM Interconnection, L.L.C., 206 Investigation, states and the Commission share a service responsibility to co-located load and generation.¹¹ Importantly, many states are already taking steps to address challenges and implement solutions related to large loads. For example, in February 2025, Indiana passed tariff revisions to set terms for new

¹⁰ 16 U.S.C. § 824(b)(1).

¹¹ Response of Advanced Energy United to PJM Interconnection, L.L.C.'s Answer to the Show Cause Order, EL25-49-000, at 8 (April 23, 2025).

large load connections requiring that new large loads pay for grid upgrades needed to connect.¹² Similarly, Texas and Nevada have also made tariff revisions to account for large load interconnection upgrades.¹³ Acting according to their historical jurisdiction over all load interconnections, states have made efforts to control the rapid growth of demand due to the influx of large load interconnection requests. While the scope of the ANOPR extends beyond these state-level efforts, there is overlap and consistency with some of the principles of the ANOPR, and these state efforts should be taken into account as the Commission contemplates a potential rulemaking.

While the substance of United's comments below apply to the topic of large load interconnection regardless of jurisdiction, some elements of the proposed changes could be undertaken by the Commission under a status quo exercise of its jurisdiction with respect to large load interconnection. United encourages the Commission, in any future proposal, to make clear which elements of the proposed reforms are *not* contingent upon the assertion that the Commission has broader jurisdiction over large loads interconnecting to the transmission system, and consider advancing these on an accelerated basis. These reforms may include, but not be limited to:

- Requiring that transmission providers study large loads and interconnecting supply resources concurrently, with appropriate guardrails as discussed below (Principle Three);

¹² Ethan Howland, *Indiana regulators approve 'large load' interconnection rules*, Utility Dive (Feb. 20, 2025), <https://www.utilitydive.com/news/indiana-iurc-large-load-interconnection-data-center-aep-amazon-google/740452/>.

¹³ Arcelia Martin, *Texas Grid Operators and Regulators Iron Out New Rules for Data Centers*, Inside Climate News (Oct. 10, 2025), <https://insideclimatenews.org/news/10102025/texas-grid-operators-and-regulators-iron-out-new-rules-for-data-centers/>; Elaine Goodman, *Large-Load Tariffs Touted as Alternative to 'Side Deals'*, RTO Insider (Sept. 4, 2025), <https://www.rtoinsider.com/114017-nm-regulators-study-large-load-rate-design/>.

- Requiring stricter standards for load forecasting for the purposes of transmission planning and as an input into resource adequacy constructs (related to Principle Four);
- Clarifying how different configurations of hybrid / co-located load plus generation resources would be studied, and how the cost of network transmission charges, ancillary services, and other wholesale costs would be assessed (Principles Five, Eleven, and Twelve);
- Taking steps to encourage and expand flexibility for large loads and non-large loads alike (Principle Seven); and
- Requiring that any existing facilities that seek to enter partial suspension to serve a new load at the same location must go through a system support resource or reliability must run (RMR) type study, and that such studies should include evaluation of potential resource adequacy concerns (Principle Ten).

Where relevant, the comments below call out opportunities for the Commission to take action without asserting exclusive jurisdiction over large loads interconnecting directly to transmission facilities.

B. Proposed Principles for Large Load Interconnection

Advanced Energy United provides the following comments in response to the fourteen principles laid out by DOE, listed in the order they appear in the ANOPR. Following DOE's proposed principles, United offers some additional considerations and principles for the Commission's consideration.

- 1. Principles One and Two: If FERC moves forward with asserting jurisdiction over large loads interconnecting to transmission facilities, it must clearly define upfront when the Commission-jurisdictional process would apply.**

The ANOPR proposes as its first principle that FERC jurisdiction be “limited to interconnections directly to transmission facilities, consistent with the Commission's seven-factor test.”¹⁴ The ANOPR likewise acknowledges that states preserve jurisdiction over generation facilities, facilities used in local distribution or only for transmission of electricity in intrastate commerce, and transmission consumed by the transmitter. The ANOPR further proposes as principle two that the “the reforms should only apply to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW.”¹⁵ The ANOPR requests comment on the specific 20 MW threshold, as well as whether a threshold is necessary at all.

Should FERC assert its jurisdiction over large load interconnection, it must clearly limit its jurisdiction to large loads connecting to transmission facilities as suggested in the ANOPR. However, reliance on the “seven factor test” alone is insufficient to avoid potential uncertainty at the boundary of state and federal jurisdiction, which could cause unnecessary delay and added cost to the large load interconnection process, contrary to DOE’s stated goal of achieving speed to power. To avoid such an outcome, there must be clear definitions for what constitutes “transmission facilities” and what constitutes “large load” for purposes of FERC-jurisdictional large load interconnection.

With respect to “transmission facilities,” as acknowledged above, should FERC choose to assert its jurisdiction over large load interconnection, such jurisdiction must be strictly limited to those loads interconnecting directly to interstate transmission. To avoid overriding state authority and to avoid costly and time-consuming confusion, the Commission should provide upfront clarity regarding whether the FERC-jurisdictional process applies to a particular interconnection

¹⁴ ANOPR at P 18.

¹⁵ ANOPR at P 19.

request to ensure that all large load interconnection customers know which process applies. Failure to provide this upfront clarity will add an otherwise unnecessary step of identifying which process applies to a particular interconnection request, which may introduce delay and confusion and even unnecessary litigation during the interconnection process. The Commission has previously recognized the potential for lack of certainty regarding jurisdictional boundaries and the adverse impact it can have on the *generator* interconnection process; this effect would be equally the case for large load interconnections. For example, in 2022, the Commission accepted a filing from ISO-New England (ISO-NE) to resolve inefficiencies with Distributed Energy Resources (DERs) connecting to the grid due to conflicting understandings of whether the ISO-NE or state interconnection process applied.¹⁶ This confusion arose because transmission operators did not have a clear map of which feeders were FERC-jurisdictional versus state-jurisdictional.¹⁷ Some interconnection customers discovered very late in the process that they had been following the wrong process, through no fault of their own, adding significant delays and unnecessary costs and regulatory processes. When applied to multi-billion dollar investment in infrastructure to serve a large load like a data center, such confusion and delay would be catastrophic.

United suggests that one potential approach to clarifying when a FERC-jurisdictional large load jurisdiction process should apply is to establish a rebuttable presumption that any large load interconnection above a certain voltage threshold is defined as interconnecting to a “transmission facility” subject to FERC jurisdiction for purposes of large load interconnections. A voltage threshold would clearly define when the FERC process applies, avoiding confusion

¹⁶ ER22-2226-000, *Letter for Interconnection Jurisdiction Tariff Revisions*, ISO-NE (June 29, 2022).

¹⁷ 180 FERC ¶ 61, 129, at P 19 (Aug 26, 2022).

and potential discrimination. There are already RTO proposals to create such a threshold definition to clearly delineate when more stringent study processes should apply: the pending SPP High Impact Large Load Integration proposal sets forth such a threshold to clarify where additional load interconnection requirements apply.¹⁸

Setting a voltage threshold may also obviate the need for a MW threshold below which the FERC process does not apply. However, should the Commission adopt such a threshold, United notes that the 20 MW threshold put forward in the ANOPR is significantly lower than the definition of “large load” already in use in states that have taken action to standardize large load interconnections. For example, Texas statute defines large load as any load above 75 MW,¹⁹ and the recent Indiana & Michigan power settlement defined large load customer as a customer with contract capacity greater than or equal to 70 MW at an individual plant.²⁰ The Commission should also clarify that existing loads that expand incrementally, e.g., due to electrification of certain industrial processes, should not trigger an entire FERC-jurisdictional re-study if the incremental load increase causes the facility’s load to exceed the MW threshold used to define large loads. At the same time, the Commission must avoid a structure that would enable new large loads to evade FERC jurisdiction by connecting initially just below the threshold, and adding incremental load after interconnecting. Reliance on a voltage threshold alone would avoid such circumstances while still functionally limiting FERC’s jurisdiction to large loads.

¹⁸ ER26-247-000, Submission of Tariff Revisions to Add the High Impact Large Load Process and High Impact Large Load Generation Assessment, Southwest Power Pool, at 12.

¹⁹ S.B. No. 6, 89th Leg., R.S. (Tex. 2025).

²⁰ Settlement in the Indiana Michigan Power (I&M) proceeding approved by the Indiana Utility Regulatory Commission (IURC) in February 2025, available at https://iurc.portal.in.gov/_entity/sharepointdocumentlocation/4aae5d78-18a9-ef11-8a6a-001dd80bd98a/bb9c6bba-fd52-45ad-8e64-a444aef13c39?file=46097_IndMich_Submission%20of%20Unopposed%20Settlement%20Agreement%20and%20Unopposed%20Motion%20for%20Acceptance%20of%20Out%20of%20Time%20Filing_112224.pdf.

2. Principle Three: Studying load or hybrid facilities jointly with generating facilities is a logical approach, but clear guardrails are necessary to avoid undue discrimination and ensure just and reasonable rates.

The ANOPR proposes that “to the extent practicable, load and hybrid facilities should be studied together with generating facilities,” and explains that “siting a large load near or at the same point of interconnection as a new generating facility could reduce the network upgrades needed to interconnect only the load or only the generating facility.”²¹ United agrees with this rationale, but cautions that this principle must be narrowly tailored to avoid adverse impacts on both existing load and other interconnection customers. United also notes that the Commission can enact a version of this principle without shifting how FERC’s jurisdiction is interpreted with respect to large load interconnection; indeed, SPP has already made a proposal for expedited study of new generation to serve large loads.²²

The concept of studying large loads together with supply resources has both near-term, practical appeal and durable, logical appeal. On a practical level, some regions are already facing supply shortages such that the only viable pathway to accommodate load growth without adversely impacting existing customers may be for new large loads to participate in some form of “Bring Your Own Generation” option. In particular, PJM is undergoing a fast-track stakeholder process to address Large Load Additions due to projected peak load growth of 32 GW from 2024-2030.²³ Bringing online new generation requires a pathway to interconnect the new generation, which a new load/generation interconnection study process would provide.

²¹ ANOPR at P 20.

²² ER26-247-000, Submission of Tariff Revisions to Add the High Impact Large Load Process and High Impact Large Load Generation Assessment, Southwest Power Pool.

²³ Letter from David E. Mills, PJM Board of Managers Chair, PJM, Interconnection, L.L.C. to PJM Stakeholders (Aug. 8, 2025). <https://www.pjm.com/-/media/DotCom/about-pjm/who-we-are/public-disclosures/2025/20250808-pjm-board-letter-re-implementation-of-critical-issue-fast-path-process-for-large-load-additions.pdf>

Beyond this period of acute need for new supply, the idea of studying new large load together with an associated new generating or storage facility has clear merit for the reasons summarized in the ANOPR. To the extent that a new large load and new generation or storage resource are geographically and electrically proximate, studying them together would reduce network upgrades, lower costs, and reduce the need for critical supply chain components. Establishing a combined study pathway would incentivize this kind of siting efficiency. Furthermore, the Commission should clarify that large loads that enter into arrangements with any new and deliverable capacity resource(s) that are appropriately sited should also be studied together. In other words, a hybrid facility should not be limited to a large load and a generator, it should also include a large load and any portfolio of capacity resources—whether generation, battery storage, demand response, distributed energy resource aggregations, or other accredited resource types.

However, a loosely defined load/supply resource interconnection pathway that provides an expedited pathway for generation interconnection without appropriate safeguards would result in undue discrimination and unjust and unreasonable rates. Any study pathway that would give generation or storage facilities a faster, likely lower-cost interconnection pathway relative to the standard large generator interconnection process (“LGIP”) queue confers advantage to generating facilities that proceed through this path. To avoid undue discrimination, this pathway must be designed such that it is specific to the circumstance of a new supply resource being brought to the system specifically to serve the new large load that justifies its expedited interconnection. This means (1) this expedited pathway should not confer the same interconnection service as is available to interconnection customers serving native load, and (2) this pathway should be available only to generation or storage resources that are not similarly

situated to other interconnection customers in that they meet eligibility parameters that meaningfully, transparently, and objectively differentiate projects that proceed via expedited pathways from projects in the general queue. Requiring merely a contractual link between the load and generation or a loose geographic link would be unduly discriminatory and would fail to protect other interconnection customers.

SPP's High Impact Large Load Generation Addition ("HILLGA") proposal currently pending in Docket No. ER 26-247-000²⁴ is a good starting point for the Commission to adapt in that it:

- Does not provide full interconnection service akin to Network Resource Interconnection Service ("NRIS") or Energy Resource Interconnection Service ("ERIS"), but rather a more limited, provisional interconnection allowing the generation to serve the new large load (which SPP terms "Load Limited Resource Interconnection Service" or "LLRIS");²⁵
- Limits LLRIS to 5 years and requires the HILLGA to be on a path toward receiving transmission service, either firm Long-Term Point-to-Point Transmission Service obtained via the Aggregate Transmission Service Study or NRIS/ERIS obtained via the standard interconnection process;²⁶ and
- Requires meaningful electrical proximity between the load/hybrid facility and the generator, defined as no more than two substations away (one if connecting at 765 kV), such that the pairing would minimize network upgrades and study complexity and avoid

²⁴ Southwest Power Pool, *Submission of Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load Generation Assessment*, Docket No.ER 26-247-000.

²⁵ *Id.*, at 29.

²⁶ *Id.*, at 29, 37.

causing congestion.²⁷ United recognizes that what constitutes “electrical proximity” may vary by region; this term should be generally defined to allow consideration of capacity deliverable to the associated load such that it relieves, avoids, or minimizes congestion impacts.

SPP explicitly designed the HILLGA process with these protections in place to avoid adversely impacting the standard generator interconnection queue.²⁸ SPP’s filing states that “a customer cannot use the HILLGA process to bypass” the normal interconnection procedures” and that it “recognizes the importance of SPP’s standard generator interconnection process and balances use of that process with a need to interconnect HILLS in an expedited manner on a limited basis during a short time period.”²⁹ This balance should guide the Commission’s development of procedures to allow concurrent study of large loads and supply resources.

While recent improvements to the interconnection process as a result of Order No. 2023 and other reforms will increase the efficiency of the standard generator interconnection process, it can reasonably be expected that a serial process operating in parallel to study individual supply resources to serve new large loads will be faster and likely cheaper.³⁰ In the absence of protections to ensure that such a path is limited and targeted, non-large load customers will be harmed because interconnection customers proceeding through standard generator interconnection process to serve all other load customers (primarily existing load) will likely face a costlier, lengthier path to connect to the grid. This would result in undue discrimination

²⁷ Id. at 26.

²⁸ Id. at 35-38.

²⁹ Id., at 36.

³⁰ For example, SPP anticipates that the HILLGA process will be completed in 150 days, compared to 12 months under its current Definitive Interconnection System Impact Study (DISIS) process. Id., at 36-37.

amongst similarly situated interconnection customers and would create incentives for interconnection customers to seek opportunities to serve new large loads rather than serving native load customers. New large loads would thus gain priority access to the best available supply resources, regardless of their geographic proximity and other factors. While an expansive shortcut may be a tempting solution to address near-term load growth needs, it must not be allowed to undermine the long-term benefits of maintaining a fair and predictable interconnection process to serve all load. With appropriate guardrails, we can have both: a streamlined load/supply interconnection process that applies in limited, specific circumstances that serves to incentivize efficient siting of new large loads and generation, and a fair and efficient generator interconnection process to serve the majority of interconnection customers consistent with the mandate to avoid undue discrimination and ensure just and reasonable rates.

3. Principle Four: Load and hybrid facilities should be subject to standardized, transparent, and stringent requirements to discipline interconnection requests and enhance load forecasting.

Drawing from the example of the generator interconnection process, the ANOPR proposes that “load and hybrid facilities should be subject to standardized study deposits, readiness requirements, and withdrawal penalties.”³¹ United directionally supports the concept of standardizing and increasing the stringency of the load interconnection process, regardless of whether this process is FERC or state jurisdictional. Should the large load interconnection process remain state-jurisdictional, United notes that the Commission can still apply this principle to the load forecasting process at the RTOs to discipline the degree of load growth that markets and planning processes should be preparing for; in light of the level of anticipated load

³¹ ANOPR at P 21.

growth and the degree of uncertainty regarding that growth, doing so is critical to preserve just and reasonable rates.

The ANOPR correctly notes that heightened financial commitments in the form of deposits and penalties would “deter speculative projects and provide transmission providers with more useful information to more accurately forecast demand on their systems.”³² Increasing the requirements on interconnecting large load customers is critical to ensure that utilities and system operators are not planning and preparing for load that will not ultimately show up, and that load is committing to pay the cost of preparing the system. Without this discipline, other new large loads will suffer the consequences of an interconnection process bogged down by speculative projects, and all ratepayers risk being left paying the cost of preparing the system for new load that never materializes.

The Commission approved, and United supported, a similar approach for generator interconnection, and the parallel that DOE draws to that process is entirely appropriate. As with the generator interconnection process, it is critical to ensure compatibility with commercial realities and to adopt a mix of financial and non-financial readiness requirements to accommodate a range of business models and avoid a “pay to play” model whereby well-capitalized large loads may be able to buy their way into multiple queue positions. The Clean Energy Buyers Association offered several non-financial readiness indicators in AD24-11-000 that the Commission should consider here, including: “(i) Site control documentation, such as land acquisition or lease agreements; (ii) Permitting progress, with permits approved or in progress; (iii) Community engagement efforts, demonstrating local support or alignment with

³² Id.

regional development goals.”³³ Including one or more of these readiness requirements as part of the large load interconnection process, in addition to financial deposits and withdrawal penalties, would ensure that only non-speculative, sufficiently ready projects will apply. As with the generator interconnection process, this is critical to avoid delays and cost increases that harm all interconnection customers. Increased transparency regarding interconnection requests, queue volumes and timing, and network upgrades—in keeping with protection of commercially sensitive information—is also important to all market participants.

Many states are already taking steps in this direction, offering a framework for the Commission and/or other states to adapt. For example, a settlement agreement in Indiana requires large loads seeking to interconnect to the utility’s system to agree to increased up-front collateral requirements, minimum demand provisions (e.g., take or pay for new capacity requested) over the term of a contract, exit fees, and several other parameters.³⁴ Some proposals include opportunities for large load customers that bring their own resources to offset security or collateral requirements, in recognition of the significant commitment this arrangement demonstrates.³⁵

Whether or not FERC asserts its jurisdiction over interconnection directly to the transmission system to create a new large load interconnection process, the Commission should require more certainty regarding large load additions for the purposes of load forecasting processes. Specifically, should the Commission create a large load interconnection process,

³³ Clean Energy Buyers Association (CEBA) comments in AD24-11, at 15.

³⁴ See Order of the Commission, Cause No. 46097, Indiana Utility Regulatory Commission (issued February 19, 2025).

³⁵ For example, Tri-State’s High Impact Load (HIL) proposal would have allowed HIL customers to reduce the security posting by participating in a Bring Your Own Resource Tariff. While FERC rejected Tri-State’s filing on jurisdictional grounds, it did not evaluate the merits of this aspect of Tri-State’s filing. 193 FERC ¶ 61,070, Commission Order (Oct. 27, 2025), at P 53.

complete with heightened financial and non-financial readiness requirements and withdrawal penalties, the information gathered from this process should directly feed into load forecasts as an input to resource adequacy constructs and for purposes of system planning. Even if states retain jurisdiction over interconnection, the Commission could require that RTOs include new large loads in their load forecasts only if such loads are backed by more stringent commitments.³⁶ As one example, AEP Ohio cut its data center forecast in half after imposing more stringent requirements on large loads seeking to interconnect to its system.³⁷ If load forecasts are inaccurate, the outcome will be infrastructure investments not matched by actual load growth—and sufficient new customers to pay for the new infrastructure—resulting in cost shifts to existing load and unjust and unreasonable rates for all customers.

4. Principle Five: Hybrid facilities should be studied based on their anticipated operation and expected impact on the grid

The ANOPR proposes that hybrid facilities be studied based on the amount of injection and/or withdrawal rights requested during the interconnection process. United agrees with the principle that hybrid facilities should be studied in such a way that the benefits of co-location are reflected in the study. United, however, urges the Commission to clearly define “hybrid facilities,” which could include a range of different configurations, and define study practices that match the anticipated operation and grid impact of such facilities to create an efficient and fair interconnection process.

³⁶See Advanced Energy United, Response, Docket No. EL25-49-000 (April 23, 2025), at 21-22; Americans for a Clean Energy Grid, Response, Docket No. EL25-49-000 (April 23, 2025), attached proposal, “A disciplined approach to load forecasting”; Letter from Electricity Customer Alliance, to Federal Energy Regulatory Commission (May 30, 2025), appended to Post-Technical Conference Comments in Docket No. AD25-7-000 and available at <https://www.electricitycustomers.com/s/Joint-Customer-Letter-to-FERC-re-Load-Forecasting-53025.pdf>, at 2.

³⁷ Meris Lutz, *The week in 5 numbers: Electricity prices extend rise, regulators rein in data centers*, Utility Dive (Nov. 14, 2025), <https://www.utilitydive.com/news/the-week-in-5-numbers-electricity-prices-extend-rise-regulators-rein-in-d/805533/>.

As written in the DOE letter, “hybrid facilities” could refer to a range of different co-location options, all which may have different impacts on the grid. All loads—hybrid or otherwise—should be studied according to, and pay for, their actual impact on the grid, including consideration of the potential for the associated generation to go offline or otherwise become unavailable. If load does not pay for grid impact, that cost unreasonably falls to consumers. Likewise, the benefits of co-location should be accounted for. To help define hybrid facilities, the Commission should refer to the record created in Docket No. EL25-49 et al. (PJM Show Cause). This record puts forth a robust discussion of various configurations of hybrid facilities and their impact on the bulk electric system.

The Commission should also look to the example of Order No. 2023, which offers flexibility to consider the unique circumstances of a particular interconnection customer that would be appropriate in addressing and defining hybrid facilities. The Order requires, at the request of interconnection customers, a transmission provider to: “use operating assumptions for electric storage resources (standalone, co-located, or hybrid) that reflect proposed charging behavior—i.e., whether it will or will not charge during peak load conditions—unless good utility practice, including applicable reliability standards, otherwise requires use of different operating assumptions.”³⁸ This requirement allows each facility to operate on a case-by-case basis rather than imposing a one-size-fits-all model that may not accurately account for the range of hybrid loads—and potential new configurations and capabilities that may emerge as technologies and operating practices evolve. This is the same flexibility that is needed to address large load interconnections across the board, but specifically hybrid loads. Not every hybrid load will bring the same capabilities and level of hybridization, and this has to be accounted for in

³⁸ 184 FERC ¶ 61,054, “Order 2023,” at P 1509.

study parameters and interconnection processes to avoid, on the one hand, overloading the grid, and, on the other hand, assigning unnecessary network upgrades that discourage co-location and further slow down efforts to accommodate new large loads.

5. Principle Six: Any hybrid interconnection should be required to install the system protection facilities, but only if deemed necessary

The ANOPR proposes that hybrid loads looking to interconnect shall be required to install system protection facilities necessary to prevent unauthorized injections or withdraws that exceed the respective rights. United supports the principle that any hybrid interconnection shall be required to install the system protection facilities necessary to prevent unauthorized injections or withdrawals that exceed the respective rights. This concept flows from the prior principle allowing hybrid facilitates while ensuring that they are paying only for necessary system upgrades given their planned operation. Given the broad scope of the ANOPR and the diversity of potential hybrid configurations, United urges the Commission to maintain flexibility when applying this principle to rulemaking. Order 2023 can serve as a model for this principle as well as the former. That Order did not require system protection facilities for all electric storage resources, but allowed transmission providers to require that interconnection customers install such facilities to prevent unauthorized injections or withdrawals.³⁹ A similar approach and method could apply to large load hybrid facilities.

6. Principle Seven: The Commission should encourage the benefits of load flexibility through expedited interconnection and other means.

The ANOPR proposes that “the interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be

³⁹ *Id.* at P 1511.

expedited.”⁴⁰ United agrees with the underlying logic that curtailment and/or dispatch of load and hybrid facilities supports “the timely and orderly addition of large loads to the transmission system in a safe, reliable, and non-discriminatory manner.”⁴¹ However, this principle applies more broadly, and should be expanded to realize the full benefits of load flexibility to accommodate rapid growth of new large loads. United supports the ANOPR proposal that load flexibility should confer the benefit of expedited interconnection, and offers the following clarifications and recommendations.

First, this treatment should apply to large loads that agree to be curtailable and dispatchable *or that enter into arrangements with deliverable capacity from flexible loads*. Even a small degree of flexibility among new large loads would enable the current system to accommodate significantly more load growth with minimal infrastructure upgrades.⁴² New large loads willing to operate without firm transmission access—either permanently on a temporary basis as network upgrades are planned and constructed—should have clearly defined, optional, and expedited pathways to do so. At the same time, the role of flexibility as a tool to accommodate new large loads extends across the entire system: roughly 1–2% of hours each year (around 100–200 hours) usually account for 15–20% of total peak demand. Thus, deploying solutions that solve this “200-hour problem” by reducing peak demand during those critical 100–200 hours can unlock significant grid capacity to accommodate load growth. Such solutions need not originate at the site of a new large load but could be incremental flexibility that is contracted by that large load and that is located such that it counteracts the impacts of the new large load.

⁴⁰ ANOPR at P 24.

⁴¹ Id.

⁴² Tyler Noriss, et al, *Rethinking load Growth: Assessing the Potential for Integration of Large Flexible Loads in US Power Systems*, Nicholas Institute for Energy, Environment and Sustainability, at 8 (Feb. 2025).

That may require all or some of the flexibility to be at or near the site of the new large load, but some or all of it may be sufficiently proximate if it is within the same delivery zone or even wholesale market region. Because demand-side resources are not subject to a generation interconnection process, they can be contractually tied to the new large load while avoiding the undue discrimination concerns discussed with respect to Principle Three.

Second, the Commission should make clear that this expedited interconnection pathway is strictly voluntary. Large loads and hybrid facilities should not face any requirement to be curtailable or dispatchable, or enter into arrangements with capacity from flexible loads, in order to interconnect, only to do so on an expedited basis. This appears to be the intent of the ANOPR, and should be made very clear in any final Commission action.

Third, in addition to receiving expedited interconnection, loads that are flexible (directly or via contract) should have pathways to benefit from the cost savings of their lower impact on the system with respect to both transmission and capacity, including either temporary or permanent access to a non-firm transmission option.

Independent of whether they receive expedited interconnection, the Commission should ensure that new large loads that choose to be curtailable should not receive preferential treatment compared to other loads participating as demand response in the capacity market. Specifically, all loads in the same capacity demand response (“DR”) program/class should be dispatched based on the same rules (i.e., timing, duration, and frequency of dispatch). Any curtailable or dispatchable loads not participating as part of a defined DR program, but simply offering curtailment to achieve faster interconnection and/or lower costs, should be deployed *prior to* Pre-Emergency or Emergency load management resources-to ensure that DR is not left picking up the slack if reserve margins are diminished due to a significant influx of new large loads that are

not matched with adequate capacity resources. Failure to follow this dispatch order will increase the cost of DR, which will in turn discourage new market entry and potentially lead to existing DR exiting the market due to event “fatigue.” This would have the counterproductive impact of delaying the interconnection of new large loads by lowering the amount of capacity available on the system to accommodate load growth.

To better accommodate current and future load growth, ISOs/RTOs should also consider offering new demand response options that are better suited to large load characteristics. Even if developed to better accommodate participation by new large loads, any such offerings should be open to all loads. For example, new DR programs could be developed for all customers that limit the annual number of hours dispatched, number of consecutive dispatch hours, number of dispatches, or other factors that may promote participation. It is understood that all such limitations will have the effect of lowering the effective load carrying capacity (“ELCC”) for such programs, but they may increase the available DR capacity overall.

7. Principle Eight: Load and hybrid facilities should be responsible for 100% of network upgrades they are assigned through interconnection studies, and should be credited these costs only to the extent the network upgrades benefit the system overall

The ANOPR proposes that load and hybrid facilities should be responsible for all network utilities they are assigned through interconnection studies, and seeks comment on “whether such costs should be offset through a crediting mechanism.”⁴³ United encourages aligning cost responsibility for load interconnection with cost responsibility for generator interconnection. In that vein, it is logical that both load and hybrid facilities should be responsible for 100% of the network upgrades they are attributed to serve the load. Should the

⁴³ ANOPR at P 25.

Commission adopt a crediting mechanism to offset costs, this should only be applied to the extent that the network upgrades are shown to bring general benefit to load. One of the Commission's primary focuses in implementing large load interconnection should be fairness and consistency across the interconnection process. Large loads should not be saddled with the full cost of network upgrades that benefit load generally, much as ratepayers should not be saddled with costs associated with grid upgrades to accommodate such large loads. Fair and equitable cost distribution and consistent processes help to maintain a reliable network and efficient queue, supporting just and reasonable rates for all customers.

8. Principle Nine: Large load interconnection customers should be granted the option to build

The ANOPR proposes that, to the extent the interconnection customer is not the transmission owner, the customer should have the same or equivalent options to build as provided in the generator interconnection process.⁴⁴ United supports this as a critical policy to support competition and give load customers opportunities to speed and lower the cost of building network upgrades.

Allowing non-transmission owning interconnection customers the same build options as transmission operators is consistent with Order No. 845. In that Order, the Commission found that, in circumstances where an interconnection customer cannot exercise the option to build, it may pay more and/or wait longer for the construction of the transmission provider's interconnection facilities and standalone network upgrades.⁴⁵ Preventing interconnection

⁴⁴ ANOPR at P 26.

⁴⁵ 163 FERC ¶ 61,043, at P 85.

customers from having the same access as transmission operators stands to further delay interconnection and clog the queue.

United also asks the Commission to consider allowing this option for all stand-alone network utilities, including those shared among multiple load customers and/or generation, provided all parties agree. Extending this option would make any order coming from this rulemaking consistent with Order No. 2023-A. In Order No. 2023-A, FERC clarified that a network upgrade that is required for multiple interconnection customers in a cluster may be considered a “stand-alone network upgrade” if all such interconnection customers mutually agree to exercise the option to build. This provides a greater opportunity for an interconnection customer to exercise this option.⁴⁶

9. Principle Ten: Existing resources should be required to undergo rigorous studies prior to entering partial suspension to serve a new load, including evaluation of the impact on resource adequacy.

The ANOPR proposes that any existing facilities that seek to enter partial suspension to serve a new load at the same location must go through a system support resource (“SSR”) or reliability must run (“RMR”) type study. The ANOPR seeks comment on “whether and how resource adequacy should be considered in the SSR/RMR type study.”⁴⁷ United agrees that such facilities should go through an SSR/RMR type study, and that such studies should include evaluation of potential resource adequacy concerns. United also emphasizes that the Commission can take this action regardless of whether it asserts jurisdiction over the interconnection of new large loads directly to the transmission system.

⁴⁶ 186 FERC ¶ 61,199, at P 141.

⁴⁷ ANOPR at P 27.

The rapid emergence of large loads has created numerous concerns over resource adequacy and reliability needs, which any regulation or action by the Commission should address. To the extent an existing generating facility seeks to enter partial or full suspension to serve an individual customer, it is critical to ensure that network load does not suffer any adverse consequences, including degradation of reliability or increased costs. The Commission should require a robust process, including a screen for reliability and stability impacts as well as resource adequacy impact, to ensure a resource needed for resource adequacy does not pull its supply from the region to serve an individual customer. The resource adequacy evaluation should also consider locational impacts; for example, allowing an existing resource to be partially dedicated to serve a new load within a congested area may not undermine resource adequacy, even if the broader RTO region is in a reserve deficiency. There are also opportunities to mitigate the impact of existing generation serving a new large load: Texas recently adopted a requirement that existing generation undergo a study akin to that contemplated by the ANOPR prior to serving a new large load through a “net metering” arrangement, while also requiring the capacity from the “exiting” resource to be available to ERCOT during emergencies.⁴⁸

Multiple regions are citing potential resource adequacy shortfalls resulting from rapid entry of new large loads; it is critical that in solving this problem, we do not create a new one by pulling needed resources away from existing customers to serve new large loads. Transparent, well-defined, robust study processes are critical to ensure continued reliability and affordability

⁴⁸ S.B. No. 6, 89th Leg., R.S. (Tex. 2025) (requiring that “a generation resource that makes dispatchable capacity available to the ERCOT power region before the implementation of a net metering arrangement [to serve a new large load] under this section to make at least that amount of dispatchable capacity available to the ERCOT power region after the implementation of the arrangement at the direction of the independent organization in advance of an anticipated emergency condition.”).

while also allowing flexibility for existing resources to serve new large loads when doing so would not adversely impact reliability or other customers.

10. Principles Eleven and Twelve: Utilities serving large loads, including those at hybrid facilities, should be responsible for transmission service and ancillary services based on the load or hybrid facility's actual use of those services.

The ANOPR asserts that “utilities serving large loads, including those at hybrid facilities, should be responsible for transmission service based on their withdrawal rights, as that value amount reflects the quantity of capacity and energy that is being transmitted across the transmission system to the load, and that “utilities serving large loads, including those at hybrid facilities, should be responsible for ancillary services based on peak demand, without consideration of any co-located generation.” United agrees with what appears to be the underlying goal of these principles, which is that large loads should pay for all the services they utilize, and avoid paying for those they do not. However, United cautions that a one-size-fits-all approach is likely insufficient given the variety of possible hybrid or co-located load configurations and the range of different grid services they rely upon.

As noted above in response to Principle Five, “hybrid facilities” may refer to a range of different co-location options that could have different impacts on the grid. All loads, whether hybrid or not, should be studied according to—and pay for—their actual impact on the grid. As Google stated in Post-Technical Conference Comments in AD24-11-000, “to the extent any co-location arrangement relies *to any degree* on the grid, the co-locating customer must ensure any grid services are appropriately compensated for.”⁴⁹ Defining the degree to which a particular load or hybrid configuration relies on a particular grid service is not a simple or straightforward task.

⁴⁹ Post-Technical Conference Comments of Google in AD24-11-000, at 5 (emphasis original).

As it untangles this question, the Commission should refer to the record in Docket No. EL25-49 et al. (PJM Show Cause) for discussion of various configurations of hybrid facilities and their use of network transmission service and various different ancillary services.

11. Principle Thirteen: If the Commission creates a new FERC-jurisdictional large load interconnection process, there must be a transition plan to implement proposed reforms that avoids pausing large load interconnections

Should the Commission move forward with a proposal to impose new requirements and standards on large load interconnections and/or create a new FERC-jurisdictional large load interconnection process, it is critical to avoid upending existing arrangements and to provide a clear and fair transition to the new rules. Consistent with the goal of facilitating growth of domestic manufacturing and AI innovation “efficiently, fairly, and expeditiously,” any transition to new rules must not result in a pause in processing of new large load interconnections as new rules go into effect—which could take years, even if the Commission meets the April 30, 2026 deadline for a final rule.

The ANOPR seeks comment on “appropriate transition plans.”⁵⁰ At minimum, United urges that any facility with a signed Energy Service Agreement should not be subject to new rules/process and its ESA should not be touched. For loads at an earlier stage of the interconnection process, United recommends a transition process analogous to that required by Order No. 2023, wherein projects that have entered or are nearing completion of the currently-applicable process have multiple options to either proceed through the existing process or select the new process, depending on what phase of the current process they are in.⁵¹ Without a well-

⁵⁰ ANOPR at P 30.

⁵¹ 184 FERC ¶ 61,054, “Order No. 2023,” at P 855.

designed transition process, any reforms enacted by the Commission impacting the load interconnection process may be counterproductive to the goal of accelerating large load interconnections in the near-term.

12. Principle Fourteen: Utilities serving large loads must be required to meet all applicable NERC reliability standards and OATT provisions

Finally, the ANOPR finds that “utilities serving large loads must meet all applicable NERC reliability standards and OATT provisions.”⁵² United agrees with this principle, and notes that NERC has been working on large load integration issues for years, and has recently issued draft guidance.⁵³ The Commission should leverage this work as it considers its own policies with respect to large load interconnection, and consider directing NERC to engage further in efforts to align standards with the kinds of capabilities for flexible and hybrid loads envisioned throughout the ANOPR.

C. Other Considerations

In addition to specifically addressing issues related to the interconnection of new large loads, the Commission should continue to prioritize related workstreams to ensure that the system overall is equipped to absorb these new loads affordably and reliably. This means prioritizing further improvements in the following areas:

- **Transmission planning.** Order No. 1920 and 1920-A will lead to more robust, scenario-based transmission planning that will unlock no-regrets regional transmission

⁵² ANOPR at P 31.

⁵³ North American Electric Reliability Corporation, *Preliminary Draft: Reliability Guideline, Risk mitigation for Emerging Large Loads* (May 2026), https://www.nerc.com/comm/RSTC_Reliability_Guidelines/ReliabilityGuideline_RiskMitigationForEmergingLargeLoads.pdf.

investments with unprecedented state involvement. The benefits of better preparing the transmission system for future needs will take time to materialize, but ensuring full and expedient implementation will shorten the wait.

- **Generator interconnection:** Order No. 2023 will speed the process of interconnecting new resources to the grid, allowing supply to more nimbly keep up with demand. Further reforms and process improvements—such as adoption of automation tools—will bring additional efficiencies. Advanced Energy United’s perspectives on additional opportunities to reduce the timeline and uncertainty of the generator interconnection process can be found in post-workshop comments in AD24-9-000.⁵⁴
- **Demand response and distributed energy resource integration:** When fully implemented, Order No. 2222 will better enable distributed energy resources to participate through aggregations to provide energy, capacity, and ancillary services, expanding the set of technologies participating in RTO/ISO markets and thus increasing competition and lowering costs. However, FERC should encourage RTOs/ISOs to pursue additional improvements through Section 205 filings. These could include, but not be limited to, expanding DR participation models and resolving information access and coordination challenges.
- **Resource adequacy:** Maintaining resource adequacy in an era of load growth was a central topic during the Commission’s two-day technical conference on Resource Adequacy in AD25-7. Much of the work in this area will be region-specific and should stem from the RTOs/ISOs. Indeed, several regions are already working on significant

⁵⁴ Advanced Energy United, American Clean Power Association, and Solar Energy Industries Association, Post Conference Comments, Docket No. AD24-9-000 (Nov. 14, 2025).

reforms. Advanced Energy United’s perspectives on resource adequacy priorities can be found in post-conference comments submitted in that proceeding.⁵⁵

- **Load forecasting:** Perhaps most importantly, the Commission should ensure that load forecasts impacting any element of Commission-jurisdictional rates, terms, and conditions of service receive adequate scrutiny to avoid the over-building and unjust and unreasonable prices that would result from inaccurate, inflated forecasts.⁵⁶ This issue arguably can and should be tackled as part of the instant proceeding, but was mentioned only briefly in the ANOPR.

Importantly, all of the actions above area squarely within the Commission’s well-established jurisdiction, and the Commission has already made important progress in most of these areas. Remaining committed to reforms already underway and pursuing additional improvements will promote affordability and reliability for all customers while enabling faster entry of new large loads.

D. Process and Timing

DOE’s Large Loads Letter rightly reflects the urgency of the moment: every day that we do not have certainty regarding the rules governing large load flexibility and co-location is a step backward when we need to be accelerating the pace of forward progress. Advanced Energy United encourages the Commission to meet DOE’s April 30, 2026 deadline for final action to the

⁵⁵ Clean Energy Associations, Post Conference Comments, Docket No. AD25-7-000 (July 7, 2025).

⁵⁶ See Letter from Chairman Rosner, Federal Energy Regul. Comm’n, to Reg’l Transmission Operators and Indep. Sys. Operators (Sept. 18, 2025); Advanced Energy United, Response, Docket No. EL25-49-000 (April 23, 2025); Americans for a Clean Energy Grid, Response, Docket No. EL25-49-000 (April 23, 2025); Letter from Electricity Customer Alliance, to Federal Energy Regulatory Commission (May 30, 2025), appended to Post-Technical Conference Comments in Docket No. AD25-7-000 and available at <https://www.electricitycustomers.com/s/Joint-Customer-Letter-to-FERC-re-Load-Forecasting-53025.pdf>.

extent feasible. At the same time, the Commission must recognize that failure to produce a final rule that thoughtfully resolves the myriad complex issues raised by the ANOPR could lead to more delay and uncertainty in the future. The Commission should expend every possible effort to deliver a timely rulemaking, while also ensuring adequate due diligence to develop durable, useful solutions that large loads will have full confidence utilizing. As noted above, the Commission should also consider moving forward on a more expedited basis on those elements of the ANOPR that are severable and that have more uniform stakeholder support.

The Commission should also reiterate the important final sentence of the ANOPR, which affirms that the proposal is “not intended in any way to discourage public utilities from making filings to address these and similar issues under FPA section 205.”⁵⁷As discussed throughout these comments, many states and RTOs/ISOs are already tackling several of the issues raised in the ANOPR. Best practices and regional differences should be allowed to emerge from these processes.

Finally, the Commission should continue to convene stakeholders and get input and ideas through a variety of channels, including but not limited to formal comments in this proceeding. Over the past year, the Commission has convened technical conferences on co-location, resource adequacy, and reliability, all of which have touched on issues directly or indirectly related to the rapid influx of new large loads. These conversations have been constructive in identifying common themes and differences, exposing challenges or tension points, and spreading emerging solutions. Given the dynamic nature of current load growth, a nimble, flexible, and responsive approach will be needed going forward.

⁵⁷ ANOPR at P 32.

III. CONCLUSION

Maintaining electricity reliability and affordability while enabling the rapid growth of new large loads is the biggest challenge and opportunity facing the electricity sector today, and the Commission can and should play an important role in ensuring fair, expedient, and transparent rules and processes for bringing online and serving these new large loads. Advanced Energy United appreciates the Commission's consideration of the above comments and looks forward to working with the Commission, states, and other stakeholders on the myriad issues related to large load interconnection as the Commission identifies and acts on priorities in this proceeding.

Respectfully submitted,

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